DIFC Order No. 1 of 2009 In respect of Parts 43 and 53 of the Rules of the DIFC Courts

MAY 31, 2009 COURT ADMINISTRATIVE ORDERS

I, Mohammed bin Rashid Al Maktoum, Vice President of the United Arab Emirates, Prime Minister, Ruler (/glossary/ruler/) of Dubai and President of the Dubai International Financial Centre,

After having reviewed;

Dubai Law No. 9 of 2004 in respect of the establishment of the DIFC (/glossary/difc/);
Dubai Law No.12 of 2004 in respect of the Judicial Authority at the DIFC;
DIFC Law No. 10 of 2004 in respect of the DIFC Courts (/glossary/difc-courts/) Law;
DIFC Order No.1 of 2007 in respect of the Rules (/glossary/rules/) of the DIFC Courts; and

upon the recommendation of the Chief Justice (/glossary/chief-justice/),

Hereby enact as follows:

1. This Order shall be cited as 'Order in Respect of Parts 43 and 53 of the Rules of DIFC Courts'.

2. In this Order, unless the context otherwise requires:

   a. "Law" means the DIFC Courts Law No.10 of 2004;
   b. "Chief Justice" means the Chief Justice of the DIFC Courts; and
   c. "Commencement Date" means the date on which this Order is signed.

3. This Order shall be interpreted in accordance with the interpretative provisions set out at paragraphs 1 and 2 of the Schedule to the Law (/glossary/the-law/) and all defined terms, unless otherwise indicated, shall bear the same meanings as set out under paragraph 3 of the Schedule to the Law.

The Rules of the DIFC Courts

4. Upon the recommendation of the Chief Justice pursuant to Article 31 of the Law, the following new Parts of the Rules of the DIFC Courts shall be enacted to supplement those issued pursuant to DIFC Order No.1 of 2007:

a. Part 43 (/difc-courts/rules/part-43) – the appended rules (/glossary/rules/) for Arbitration Claims; and

b. Part 53 (/difc-courts/rules/part-53) – the appended rules of the Small Claims Tribunal (/glossary/tribunal/).

Application of the New Parts of the Rules of the DIFC Courts

5. From the Commencement Date all proceedings before the DIFC Courts must be commenced in accordance with the Rules of the DIFC Courts, which shall incorporate the appended Part 43 (/difc-courts/rules/part-43) and Part 53 (/difc-courts/rules/part-53).

6. This Order shall come into force on the Commencement Date.

Mohammed bin Rashid Al Maktoum

President of the Dubai International Financial Centre.

Issued at 31/05/2009 Dubai

Corresponding to: 1430 Hijri